

COUNTERPARTY RESPONSE LETTER

Reference: RESP-BIOSERVE-2026-03-28

Date: March 28, 2026

From: BioServe Medical Systems SARL

To: MedCare Clinics SARL

Subject

Response to notice of breach and invoice dispute.

1) Service Response Position

BioServe denies material breach. BioServe states the onsite response clock should start at 09:10 when its helpdesk accepted the complete ticket, not 08:28 when MedCare opened the first ticket. BioServe also states traffic disruption around Ariana delayed technician arrival.

2) Preventive Maintenance Position

BioServe states a February preventive check was performed remotely on February 26, 2026. BioServe admits that the signed service sheet is missing and offers to reconstruct the log from system telemetry.

3) Invoice Position

BioServe maintains that Invoice BS-INV-2026-0317 is payable in full. However, as a commercial gesture, BioServe offers a temporary credit note of 6,500 TND if MedCare pays the undisputed amount by April 5, 2026.

4) Corrective Actions

- Additional senior engineer visit proposed for April 2, 2026
- Remote monitoring thresholds to be recalibrated by April 4, 2026
- Joint review meeting proposed for April 6, 2026 at 10:00

5) Legal Reservation

BioServe reserves its right to claim late payment interest if undisputed amounts remain unpaid.